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STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 2975

By: Hardin

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An Act relating to agriculture; amending 2 O.S. 2021, Section 10-9.7, as last amended by Section 2, Chapter 372, O.S.L. 2024 (2 O.S. Supp. 2025, Section 10-9.7), which relates to nutrient management plans; expanding certain statements that must be made in an amendment to a nutrient management plan; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 2 O.S. 2021, Section 10-9.7, as last amended by Section 2, Chapter 372, O.S.L. 2024 (2 O.S. Supp. 2025, Section 10-9.7), is amended to read as follows:

Section 10-9.7. A. All poultry feeding operations shall utilize Best Management Practices and shall meet the conditions and requirements established by subsection B of this section and by rules promulgated by the State Board of Agriculture pursuant to the Oklahoma Registered Poultry Feeding Operations Act. Compliance with a Nutrient Management Plan developed under subsections B and C of

CORRECTED

1 this section shall be deemed compliant with Best Management
2 Practices.

3 B. Best Management Practices shall be promulgated by rules by
4 the Board and shall include, but not be limited to, the following
5 when developing Nutrient Management Plans:

6 1. Measures designed to prevent the discharge of poultry waste
7 to waters of the state;

8 2. Measures requiring stored poultry waste shall be isolated
9 from outside surface drainage by covers, ditches, dikes, berms,
10 terraces, or other such structures;

11 3. Measures designed to prevent waters of the state from coming
12 into direct contact with the poultry confined on the poultry feeding
13 operation; and

14 4. Measures designed to ensure that poultry waste handling,
15 treatment, management, and removal shall:

16 a. not create an environmental or a public health hazard,

17 b. not result in the contamination of waters of the
18 state, and

19 c. conform to such other handling, treatment, and
20 management and removal requirements deemed necessary
21 by the Oklahoma Department of Agriculture, Food, and
22 Forestry to implement the Oklahoma Registered Poultry
23 Feeding Operations Act and rules promulgated pursuant
24 thereto.

CORRECTED

1 The rules promulgated by the Board pursuant to this section
2 shall provide for exceptions to the storage requirements for poultry
3 waste in emergency situations. Such exceptions shall include, but
4 not be limited to, allowing a contract poultry grower to take such
5 actions as are necessary to meet requirements imposed on a grower by
6 an integrator. In such situations, growers shall be required to
7 take all actions feasible to prevent pollution from stored poultry
8 waste.

9 C. Every poultry feeding operation shall have a Nutrient
10 Management Plan which shall include at a minimum:

11 1. A description of poultry waste handling procedures and
12 availability of equipment and type of equipment to be used;

13 2. The calculations and assumptions used for determining land-
14 application rates if land application is applicable;

15 3. All nutrient analysis data for soil and poultry waste
16 testing;

17 4. Legal description and latitude and longitude of lands to be
18 used by an operation for land application;

19 5. Land-application rates of poultry waste shall be based on
20 the available nitrogen and phosphorous content of the poultry waste
21 and shall provide controls for runoff and erosion as appropriate for
22 site conditions;
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CORRECTED

1 6. The procedures documented in the Nutrient Management Plan
2 shall ensure that the handling and utilization of poultry waste
3 complies with the following requirements:

4 a. adequate poultry waste storage shall be provided
5 consistent with rules promulgated by the Oklahoma
6 Department of Agriculture, Food, and Forestry pursuant
7 to subsection B of this section,

8 b. poultry waste shall not be applied to land when the
9 ground is saturated or during rainfall events.

10 Poultry waste shall not be applied to land when the
11 ground is frozen except in conformance with the
12 Nutrient Management Plan,

13 c. poultry waste shall only be applied to suitable land
14 at appropriate times and rates. Discharge or runoff
15 of waste from the application site is evidence that
16 the Nutrient Management Plan requires revisions.

17 Timing and rate of applications shall be based on
18 assimilation capacity of the soil profile, assuming
19 usual nutrient losses, expected precipitation, and
20 soil conditions, and

21 d. poultry waste application shall be prohibited on land
22 subject to excessive erosion;

CORRECTED

1 7. Records shall be maintained of all poultry wastes applied on
2 land owned or controlled by the operator, and sold or given to other
3 persons:

4 a. if the poultry waste is sold or given to other persons
5 for land application or other use, the poultry feeding
6 operation shall maintain a log of date of removal from
7 the poultry feeding operation, name of recipient the
8 poultry waste is sold or given to, and amount in wet
9 tons, dry tons or cubic yards of poultry waste removed
10 from the poultry feeding operation, and

11 b. the poultry feeding operation shall make available to
12 the recipient any nutrient sample analysis of the
13 poultry waste from that year;

14 8. Any analysis required by the provisions of the Oklahoma
15 Registered Poultry Feeding Operations Act or rules promulgated
16 thereto shall be performed by a qualified environmental testing
17 laboratory certified by the Department of Environmental Quality and
18 approved by the Oklahoma Department of Agriculture, Food, and
19 Forestry; and

20 9. Such other information deemed necessary by the Oklahoma
21 Department of Agriculture, Food, and Forestry to administer the
22 provisions of the Oklahoma Registered Poultry Feeding Operations Act
23 and rules promulgated pursuant thereto.
24

CORRECTED

1 D. 1. The Nutrient Management Plan for new or expanding
2 poultry feeding operations submitted after July 1, 1998, shall be
3 prepared by the operator or designee of the operator.

4 2. After the plan is submitted to the Oklahoma Department of
5 Agriculture, Food, and Forestry for review and approval if the
6 Department determines that a submitted plan needs or requires any
7 corrections or modifications, the Department shall return the
8 Nutrient Management Plan to the operator for corrections.

9 3. For a renewal, if the Department determines the Nutrient
10 Management Plan needs or requires corrections or modifications, the
11 Department shall make appropriate corrections, approve the plan, and
12 notify the poultry feeding operation of the modifications.

13 E. 1. Except as otherwise provided in this subsection, a
14 Nutrient Management Plan for every poultry feeding operation shall
15 be renewed and an updated plan shall be submitted to the Oklahoma
16 Department of Agriculture, Food, and Forestry every six (6) years
17 from the date the initial or previous plan was submitted.

18 2. The operator shall have the option to submit the renewed or
19 updated plan through the Department's website or a printable online
20 form designed by the Department.

21 3. A current operator may submit a one-page amendment to the
22 most recently submitted plan in lieu of a renewal plan through the
23 Department's website, if applicable. Poultry feeding operations
24 submitting an amendment pursuant to this subsection shall still be

CORRECTED

subject to the soil and poultry waste testing requirements under subsections F and G of this section. The amendment shall contain the following statements:

- a. no changes in the Department's promulgated standards for land application of poultry waste have occurred since the most recently submitted Nutrient Management Plan,
- b. there has been no change to the number of poultry housed since the most recently submitted Nutrient Management Plan,
- c. there has been no expansion in the poultry feeding operation since the most recently submitted Nutrient Management Plan, and
- d. the entirety of the poultry waste is:
 - (1) removed off-site as provided in the poultry feeding operation's annual report, as required by subsection J of this section, and will continue to be removed off-site for the next six (6) years, ~~or~~
 - (2) land-applied and will continue to be land-applied for the next six (6) years, or
 - (3) removed off-site and land-applied and will continue with both for the next six (6) years.

CORRECTED

F. Every poultry feeding operation located in a non-nutrient-limited watershed and non-nutrient-vulnerable groundwaters shall perform soil testing on each land-application area and poultry waste testing at least once every three (3) years to determine:

1. Soil pH and plant-available nutrients including, at a minimum, nitrogen, phosphorous, and potassium;
2. Poultry waste nutrient concentrations and moisture; and
3. Application rate based upon the Department's standards for land application for poultry waste as promulgated by rules.

G. Every poultry feeding operation located in a nutrient-limited watershed and nutrient-vulnerable groundwater shall perform an annual soil test on each land-application area prior to the first application of the calendar year. Poultry waste testing shall be performed annually prior to the first application of the calendar year. Soil and poultry waste testing shall be performed to determine:

1. Soil pH and plant-available nutrients including at least nitrogen, phosphorous, and potassium;
2. Poultry waste nutrient concentrations and moisture; and
3. Application rate based upon the Department's standards for land application of poultry waste as promulgated by rules.

H. 1. Soil and poultry waste analysis data shall be retained by the poultry feeding operation for a minimum of six (6) years.

CORRECTED

2. All soil and poultry waste analysis data shall be dated prior to land application.

I. 1. Poultry feeding operations shall develop a plan for the disposal of carcasses associated with normal mortality.

2. In the event there is an outbreak of a major disease or other emergency resulting in deaths significantly higher than normal mortality rates, the Oklahoma Department of Agriculture, Food, and Forestry may approve, in writing, an alternate method of disposal of carcasses or the storage of poultry waste during the emergency period.

J. Every poultry feeding operation shall file by September 1 of each year an annual report with the Department regarding all poultry waste removed from or land-applied by the facility for the period from July 1 of the previous year through June 30 of that year. The report shall contain the following information:

1. The date and amount of poultry waste removed from or land-applied at the facility;

2. The type of poultry waste removed or land-applied, whether a cake out, full clean out, in-house windrow or compost, poultry waste stack shed, or other type;

3. The county and, if applicable, the name of the nutrient-limited watershed where the poultry waste was produced; and

4. The location where the poultry waste is removed to:

a. if land-applied on-site, provide the following:

CORRECTED

- (1) the date of the land application,
- (2) the total amount of poultry waste land-applied in wet tons, dry tons, or cubic yards,
- (3) the name, mailing address, and telephone number of the poultry waste applicator, and
- (4) the number of acres under the control of the poultry feeding operation for land application of poultry waste, or

b. if removed off-site, provide the following:

- (1) the date of the removal off-site,
- (2) the amount of poultry waste removed in wet tons, dry tons, or cubic yards,
- (3) the name, mailing address, and telephone number of the person the poultry waste is sold or transferred to, and
- (4) the name, mailing address, telephone number, and poultry waste applicator license number of the poultry waste applicator, if known, ~~and~~
- ~~(5) the name, mailing address, and telephone number of the hauler of the poultry waste.~~

SECTION 2. This act shall become effective November 1, 2026.

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